



**U.S. Citizenship  
and Immigration  
Services**

**Non-Precedent Decision of the  
Administrative Appeals Office**

In Re: 36174730

Date: JAN. 21, 2025

Appeal of California Service Center Decision

Form I-129, Petition for Nonimmigrant Worker (H-1B)

The Petitioner seeks to temporarily employ the Beneficiary under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(b), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to file a petition with U.S. Citizenship and Immigration Services (USCIS) to temporarily employ a qualified foreign worker in a position that requires both: (a) the theoretical and practical application of a body of highly specialized knowledge; and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The California Service Center Director denied the Form I-129, Petition for a Nonimmigrant Worker (petition), concluding the record did not establish that the offered position qualified as a specialty occupation. The matter is now before us on appeal under 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

## **I. LEGAL FRAMEWORK**

The Act at Section 214(i)(1), 8 U.S.C. § 1184(i)(1), defines the term “specialty occupation” as an occupation that requires: (A) the theoretical and practical application of a body of highly specialized knowledge, and (B) attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) is a minimum for entry into the occupation in the United States.

The regulation at 8 C.F.R. § 214.2(h)(4)(ii) adds a non-exhaustive list of fields of endeavor to the statutory definition. And the regulation at 8 C.F.R. § 214.2(h)(4)(iii) requires that the offered position must also meet one of the following criteria to qualify as a specialty occupation:

1. A baccalaureate or higher degree or its equivalent is normally the minimum requirement for entry into the particular position.

2. The degree requirement is common to the industry in parallel positions among similar organizations or, in the alternative, an employer may show that its particular position is so complex or unique that it can be performed only by an individual with a degree;
3. The employer normally requires a degree or its equivalent for the position; or
4. The nature of the specific duties [is] so specialized and complex that knowledge required to perform the duties is usually associated with the attainment of a baccalaureate or higher degree.

The statute and the regulations must be read together to make sure that the offered position meets the definition of a specialty occupation. *See K Mart Corp. v. Cartier, Inc.*, 486 U.S. 281, 291 (1988) (holding that construction of language which takes into account the design of the statute as a whole is preferred); *see also COIT Independence Joint Venture v. Fed. Sav. And Loan Ins. Corp.*, 489 U.S. 561 (1989); *Matter of W-F-*, 21 I&N Dec. 503 (BIA 1996). Considering the statute and the regulations separately leads to scenarios where a Petitioner satisfies a regulatory factor but not the definition of specialty occupation contained in the statute. *See Defensor v. Meissner*, 201 F.3d 384, 387 5<sup>th</sup> Cir. 2000). The regulatory criteria read together with the statute gives effect to the statutory intent. *See Temporary Alien Workers Seeking Classification Under the Immigration and Nationality Act*, 56 Fed. Reg. 61111, 61112 Dec. 2, 1991).

So, we construe the term “degree” in 8 C.F.R. § 214.2(h)(4)(iii)(A) to mean not just any baccalaureate or higher degree, but one in a specific specialty that is directly related to the offered position supporting the statutory definition of specialty occupation. *See Royal Siam Corp. v. Chertoff*, 484 F.3d 139, 147 (1st Cir. 2007) (describing “a degree requirement in a specific specialty” as “one that relates directly to the duties and responsibilities of a particular position”). USCIS’ application of this standard has resulted in the orderly approval of H-1B petitions for engineers, accountants, information technology professionals and other occupations, commensurate with what Congress intended when it created the H-1B category.

And job title or broad occupational category alone does not determine whether a particular job is a specialty occupation under the regulations and statute. The nature of the Petitioner’s business operations along with the specific duties of the offered job are also considered. We must evaluate the employment of the individual and determine whether the position qualifies as a specialty occupation. *See Defensor*, 201 F.3d 384. So, a Petitioner’s self-imposed requirements are not as critical as whether the position the Petitioner offers requires the application of a theoretical and practical body of knowledge gained after earning the required baccalaureate or higher degree in the specific specialty required to accomplish the duties of the job.

By regulation, the Director is charged with determining whether the petition involves a specialty occupation as defined in section 214(i)(1) of the Act. 8 C.F.R. § 214.2(h)(4)(i)(B)(2). The Director may request additional evidence in the course of making this determination. 8 C.F.R. § 103.2(b)(8). In addition, a petitioner must establish eligibility at the time of filing the petition and must continue to be eligible through adjudication. 8 C.F.R. § 103.2(b)(1).

## II. THE OFFERED POSITION AND ITS PREREQUISITES

The Petitioner provided an initial statement describing the offered position's duties and stated the following relating to the position's prerequisites: "The position . . . requires that the incumbent possess a bachelor's degree or higher in business, economics, engineering or other relevant discipline." It largely reiterated these same requirements in its response to the request for evidence and on appeal.

## III. ANALYSIS

The H-1B program's statutory and regulatory framework offers no alternative other than denial of the petition before us. The Petitioner's acceptance of a general business degree without specialization does not satisfy the statutory and regulatory definition of a specialty occupation, and that acceptance alone mandates the petition's denial.

And even if we were to set aside that issue, we would still conclude that the Petitioner's acceptance of a bachelor's degree from the wide variety of fields it specifies also precludes it from satisfying both the statutory and regulatory definition of specialty occupation. This deficiency alone would also mandate the petition's denial. Below, we will discuss each of the independent bases requiring the petition's denial.

### A. General Degree Requirement.

The offered position does not meet the statutory or regulatory definition of the term "specialty occupation." The Petitioner has not satisfied the requirement that the offered position require the theoretical and practical application of a body of highly specialized knowledge and that the position requires attainment of a bachelor's degree in the specific specialty to perform the job duties. The record contains the Petitioner's stated requirements for the offered position: a bachelor's degree in business administration.

Historically, the agency has consistently disfavored a general-purpose bachelor's degree in business administration with no additional specialization in accordance with the statutory and regulatory requirements. For example, in *Matter of Ling*, 13 I&N Dec. 35, 39 (Reg'l Comm'r 1968), the agency stated that attainment of a bachelor's degree in business administration alone was insufficient to qualify a foreign national as a member of the professions pursuant to section 101(a)(32) of the Act, 8 U.S.C. § 1101(a)(32). In *Matter of Michael Hertz Assocs.*, 19 I&N Dec. 558, 560 (Comm'r 1988), the agency clarified that a requirement for a degree with a generalized title, such as business administration, without further specification, was insufficient to qualify the position as one that is professional upon an examination of the nature of the position itself pursuant to section 101(1)(32) of the Act. And in *Matter of Caron Int'l*, 19 I&N Dec. 791 (Comm'r 1988), a vice presidential position for manufacturing in a textile company was deemed to not be a professional position because an individual holding a general degree in business, engineering, or science could perform its duties.

When Congress revised the H-1B program as part of the Immigration Act of 1990, Pub. L. No. 101-649, 104 Stat. 4978, it shifted its focus from the prior H-1B standard's examination of whether an offered position was professional, and instead required petitioners to demonstrate that a position was a specialty occupation.

Even after this adjustment, the agency’s concerns with a general-purpose bachelor’s degree in business administration with no additional specialization did not falter. *See e.g. Shanti, Inc. v. Reno*, 36 F. Supp. 2d 1151 (D. Minn. 1999); *2233 Paradise Road, LLC v. Cissna*, No. 17–cv–01018–APG–VCF, 2018 WL 3312967 (D. Nev., July 3, 2018); *XiaoTong Liu v. Baran*, No. 18-00376-JVS, 2018 WL 7348851 (C.D. Cal., Dec. 21, 2018); *Parzenn Partners v. Baran*, No. 19-cv-11515-ADB, 2019 WL 6130678 (D. Mass., Nov. 19, 2019); *Vision Builders, LLC v. USCIS*, No. CV 19-3159 (TJK), 2020 WL 5891546, at \*5 (D.D.C. Oct. 5, 2020); *Xpress Group v. Cuccinelli*, No. 3:20-CV-00568-DSC, 2022 WL 433482 (W.D.N.C. Feb. 10, 2022).

As the First Circuit Court of Appeals explained in *Royal Siam*, 484 F.3d at 147:

The courts and the agency consistently have stated that, although a general-purpose bachelor’s degree, such as a business administration degree, may be a legitimate prerequisite for a particular position, requiring such a degree, without more, will not justify granting of a petition for an H-1B specialty occupation visa. *See e.g., Tapis Int’l v. INS*, 94 F. Supp.2d 172, 175–76 (D. Mass. 2000); *Shanti*, 36 F.Supp.2d at 1164–66; *cf. Matter of Michael Hertz Assocs.*, 19 I&N Dec. 558, 560 ([Comm’r] 1988) (providing frequently cited analysis in connection with a conceptually similar provision). This is as it should be: otherwise, an employer could ensure the granting of a specialty occupation visa petition by the simple expedient of creating a generic (and essentially artificial) degree requirement.<sup>1</sup>

If a position is a “specialty occupation” under the statute and regulations, it is one which involves a “body of highly specialized knowledge” attained after completing a bachelor’s degree or higher in a “specific specialty.” A general degree requirement like a bachelor’s degree in business or business administration, standing alone without any further specialization, is not a requirement for a degree in a specialty.<sup>2</sup> And this excludes any offered position accepting such a degree as a minimum requirement for entry into the position—like the Petitioner’s position—from qualifying as a specialty occupation.

A requirement for a bachelor’s degree in business without further specialization is so broad that it could apply to a position in finance as well as general business operations and management in a variety of endeavors. So, it cannot provide an individual with the “body of highly specialized knowledge” required to perform the duties of a specialty occupation. And the Petitioner spotlights this in its appeal brief when it contends that “Business and Business Administration degrees can indeed include several

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<sup>1</sup> *But see India House, Inc. v. McAleenan*, 449 F.Supp 3d 4 (D.R.I. 2020). In *India House* the court distinguished *Royal Siam* on factual grounds but did not dispute its central reasoning that a position whose duties can be fulfilled by an individual with a general-purpose bachelor’s degree in business administration is not a specialty occupation. Instead, it distinguished *Royal Siam* on factual grounds. Here, the Petitioner specifically recognizes an unspecialized bachelor’s degree in business and business administration as being one of many degrees it considers as providing an adequate preparation to perform the duties of the offered position.

<sup>2</sup> *But see InspectionXpert Corporation v. Cuccinelli*, 2020 WL 1062821 (M.D.N.C. Mar. 5, 2020). In *InspectionXpert* the court considered whether the educational requirement of an engineering degree without further specialization was too broad for a quality engineer position. While the court found that a generalized engineering requirement did comprise a specialty, it also distinguished engineering from other broad degrees, such as liberal arts or business administration degrees. *Id.* at \*24. Our holding today therefore does not conflict with *InspectionXpert*.

sub-concentrations, such as operations, strategy, management, finance or marketing; however, the majority of Business Administration degree programs provide an individual with the same body of highly specialized quantitative, analytical, financial and operations knowledge . . . .”

We agree with that statement. But if a generalized degree like business administration provides the knowledge required to perform the duties of the position along all its broad sub-concentrations, like strategy, then it follows that the knowledge common within the fields is general. So, a bachelor’s degree in business with no further specialization is not a degree in a specific specialty and the fact that the Petitioner would accept such a degree as a minimum qualification for entry to the offered position does not satisfy the statutory and regulatory definitions of specialty occupation.

On that basis alone, we could dismiss the appeal in alignment with longstanding agency policy without any further discussion.

#### B. Wide and Disparate Acceptable Degree Field Range

Even if we were to move beyond the dispositive issue of the Petitioner’s acceptance of a business degree with no further specialization, we would still conclude that their acceptance of a bachelor’s degree from the wide variety of fields it specifies would preclude the Petitioner from satisfying both the statutory and regulatory definition of a specialty occupation. The Petitioner’s request for evidence response, as presented through counsel, reflects that along with a bachelor’s degree in business with no further specialization, the Petitioner would also accept other varied bachelor’s degrees in “economics, engineering, or other specific and directly related field[s]” for entry into the offered job.

The Director correctly found this acceptable range of degrees too wide and denied the petition. The Petitioner’s grouping of business with no further specialization in combination with economics and engineering is not adequately supported in the record with evidence highlighting its composition as collectively forming a singular specialty in a body of highly specialized knowledge. In fact, the Petitioner clarifies that “quantitative, analytical, financial, and operational knowledge” is acquired across the business, economics, and engineering fields it accepts as a minimum baccalaureate level educational credential for entry into the occupation.

The Petitioner’s clarification of skills in combination with its mass grouping of degree fields constitutes a range so broad that it cannot compose a “specialty” required to perform the duties of a “specialty occupation.”

When the desired skills including but not limited to “quantitative problem solving,” “technical analysis,” and “synthesis of quantitative analysis” can be gained from any number of seemingly unrelated degrees, spanning from hard sciences such as engineering to “business,” the only conclusion can be that these skills are fundamental and not specialized. In fact, numerous unrelated specialties would fall within the Petitioner’s minimum educational requirements with their desired range of skills. This could lead to a scenario where the Petitioner would accept an individual with any bachelor’s degree so long as it provided the Petitioner’s desired range of quantitative skills. Such a position would not be considered specialized.

In other words, a requirement for a bachelor's degree in business is not a requirement for a bachelor's degree in a specific specialty directly related to the offered position. See *Innova Sols., Inc. v. Baran*, 338 F. Supp. 3d 1009, 1025 (N.D. Cal. 2018) (citing *Caremax Inc. v. Holder*, 40 F. Supp. 3d 1182, 1187–88 (N.D. Cal. 2014) in which the court held that “[a] position that requires applicants to have any bachelor's degree, or a bachelor's degree in a large subset of fields, can hardly be considered specialized.”); see also *Taylor Made Software, Inc. v. Cuccinelli*, 453 F. Supp. 3d 237, 243–44 (D.D.C. 2020). The record as it is presently composed does not establish how this range of skills could form a body of highly specialized knowledge or a specific specialty.

On appeal, the Petitioner contends the Director applied an incorrect legal standard when they denied the petition and the filing party here relies on *Residential Finance Corporation v. USCIS*, 839 F.Supp.2d 985 (S.D. Ohio 2012) alleging it supports a conclusion that its wide range of degrees can constitute a specialty required to perform the duties of a specialty occupation. The Petitioner's arguments are not persuasive.

The court in *Residential Finance* considered whether the statute required that only one specific degree be accepted for a position to be specialized. It does not stand for the proposition that a wide variety of degrees can constitute a specialty required to perform the duties of a specialty occupation. Quite the opposite, *Residential Finance* found for the Plaintiff only after determining that the Plaintiff had established its minimum requirements capture the necessity of a baccalaureate degree in a specialized course of study in a field related to the offered job's duties as a minimum. *Residential Finance Corporation*, 839 F.Supp.2d at 996. In other words, the court in *Residential Finance* did not state that a Petitioner can patch together any grouping of degree fields and call it a specialty, as the Petitioner seems to imply.

To the contrary, the plaintiff in *Residential Finance* prevailed because the court determined their grouping of degree fields was a specialty. The foundational principle leading to the holding in *Residential Finance* is also present in several other cases, including cases the agency lost on other grounds. In *Relx v. Baran*, 397 F.Supp.3d 41 (D.D.C. 2019), the court determined that a specialty occupation existed only after deciding that the occupation required a specialized course of study the plaintiff had earned. *Id.* at 55. In *CARE v. Nielsen*, 461 F. Supp.3d 1289 (N.D. Ga. 2020) the court stated that most occupations in the offered job's occupational classification require a bachelor's degree as a minimum educational requirement for entry but only after recognizing that the statute and regulation must be read together to require a baccalaureate or higher education in a specific specialty. *Id.* at 1304.

Further, the Petitioner's appeal brief reflects the fact that a position accepts degrees in various fields is not disqualifying for the H-1B visa category. We agree, but the issue here is not that the Petitioner would accept degrees in various fields. The issue in this appeal is that the Petitioner's stated spectrum of acceptable degrees is too broad to support a finding that the offered position requires a bachelor's degree in a specific specialty, or the equivalent.

We interpret the statutory “the” and the regulatory “a” to mean a singular specialty but we do not so narrowly interpret the statute and regulation such that multiple closely related fields of study would not constitute a specialty to perform the duties of a related specialty occupation. In general, a minimum of a bachelor's or higher degree in more than one specialty is recognized as satisfying the

“degree in the specific specialty (or its equivalent)” requirement of section 214(i)(1)(B) of the Act provided the specialties are closely related such that they constitute a common specialty required to perform the duties of the position.

If they constitute a common specialty, then the required “body of highly specialized knowledge” would essentially be the same. If the required degree fields do not constitute a common specialty, a minimum entry requirement of a degree in disparate fields would not meet the statutory requirement that the degree be “in the specific specialty (or its equivalent).” A minimum entry requirement that did include disparate fields of study, such as philosophy and engineering for example, would require a petitioner to establish how each field is directly related to all the duties and responsibilities of the particular position. Section 214(i)(1)(B) of the Act.

In summary, there is no statutory requirement that the required education must consist of one specific degree or major. However, there must be a clear relationship between the specialized studies and the “specialty” required for the position, as supported by the case law the Petitioner cites in its appeal. If a petitioner accepts bachelor’s degrees from a wide variety of seemingly unrelated fields, such as those presented here, it must demonstrate how each accepted field is directly related to the others and to the position’s duties. As currently presented, the record does not support the conclusion that the Petitioner’s broad grouping of degree fields is sufficiently narrow to qualify as a “specialty” required to perform the duties of the “specialty occupation.”

#### C. We Reserve Other Eligibility Determinations

Because the identified bases for the petition’s denial is dispositive of this appeal, we decline to reach and hereby reserve the Petitioner’s remaining appellate arguments. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (“courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach”); *see also Matter of Larios-Gutierrez De Pablo & Pablo-Larios*, 28 I&N Dec. 868, 877 n.8 (BIA 2024) (declining to reach alternative issues on appeal where a filing party is otherwise ineligible). Those reserved arguments relate to the supplemental criteria at 8 C.F.R. § 214.2(h)(4)(iii)(A)(1)–(4).

#### IV. CONCLUSION

The appeal will be dismissed for the above stated reasons, with each considered an independent and alternative basis for the decision. In visa petition proceedings, it is a petitioner’s burden to establish eligibility for the immigration benefit sought. The Petitioner has not met that burden.

**ORDER:** The appeal is dismissed.